

2:00 PM LINE 6

25-CIV-02804

TOPPAN MERRILL LLC VS. PRESTO AUTOMATION INC.

TOPPAN MERRILL LLC
PRESTO AUTOMATION INC.

CAZ ASHJIAN

Plaintiff's Motion for Order to Substitute Serve the Complaint and Summons on the California Secretary of State

TENTATIVE RULING:

For the reasons stated below, Plaintiff Toppan Merrill LLC's Motion for an Order Permitting Substituted Service of the Summons and Complaint on the California Secretary of State is **GRANTED**.

Presto Automation Inc. is a foreign corporation. Corporations Code section 2111, subdivision (a), permits the Court to authorize service on the California Secretary of State when the corporation's designated agent for service of process cannot be found with due diligence at the designated address or the other circumstances specified in the statute are established by affidavit. (Corp. Code, § 2111, subd. (a).) Service made pursuant to section 2111 is deemed complete on the tenth day after delivery of the process to the Secretary of State. (Ibid.)

Here, Plaintiff has demonstrated the requisite due diligence. Plaintiff unsuccessfully attempted service at 985 Industrial Road, Suite 205, San Carlos, California, where the process server was informed that Defendant was no longer located. Plaintiff thereafter made four unsuccessful attempts to serve Defendant at 4 West 4th Street, Sixth Floor, San Mateo, California, on May 15, 19, 20, and 21, 2025. Plaintiff also located and attempted service at an address for a corporate officer and subsequently made three unsuccessful attempts at another address located for Defendant's agent for service of process. (Sposato Decl., ¶¶ 6–7, Exs. D–E.) These efforts establish due diligence within the meaning of Corporations Code section 2111.

Accordingly, the motion is **GRANTED**, and Plaintiff may serve Defendant through the California Secretary of State in the manner prescribed by Corporations Code section 2111, subdivision (a).

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM LINE 7

25-CIV-06878

FRANK KAUL VS. AFONSO INFANTE, ET AL

FRANK KAUL
AFONSO INFANTE

PRO SE
PRO SE

Defendant's Demurrer to Verified First Amended Complaint

TENTATIVE RULING:

For the reasons stated below, Defendant Afonso Infante's ("Defendant" or "Infante") demurrer to Plaintiff Frank Kaul dba Swift Legal's ("Plaintiff") March 16, 2026 verified First Amended Complaint ("FAC") is **OVERRULED** in its entirety. (Code Civ. Proc., § 430.10, subds. (e), (f).)

Defendant's request to reclassify the action as a limited civil case is **DENIED**.

BACKGROUND

Plaintiff's original Complaint ("OC"), filed September 18, 2025, alleged that, on or about February 24, 2025, Defendant entered into an agreement with Plaintiff pursuant to which Plaintiff would provide private-investigative and service-of-process services to locate and serve third parties in connection with legal matters. Plaintiff alleged that Defendant promised to pay for those services despite having no intention of doing so. According to the OC, after Plaintiff provided the services, Defendant breached the agreement on or about June 15, 2025, by reversing, disputing, or otherwise refusing payment. Defendant demurred to the OC. On March 5, 2026, the Court sustained the demurrer in part and overruled it in part, with leave to amend.

On March 16, 2026, Plaintiff filed the verified FAC, which asserts three causes of action against Infante: (1) common counts—work, labor, and services; (2) breach of contract; and (3) promissory fraud. Defendant demurs to all three causes of action on the grounds that they fail to state facts sufficient to constitute a cause of action and are uncertain. (Code Civ. Proc., § 430.10, subds. (e), (f).)

LEGAL STANDARD

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to determine whether they state a cause of action under any legal theory as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) A complaint must allege the essential elements of a cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) A demurrer must dispose of an entire cause of action to be sustained. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)